



CHAPTER 10.

An Act to provide for the application of certain Defence Regulations for purposes connected with the maintenance control and regulation of supplies and services, for enabling Defence Regulations to be made for the control of prices and charges, for the continuation of Defence Regulations so applied or made during a limited period notwithstanding the expiry of the Emergency Powers (Defence) Acts, 1939 to 1945, and for the amendment of other enactments in consequence of such continuation; to make provision for securing more effective Parliamentary control over Defence Regulations and orders and other instruments made thereunder; to provide for applying during a limited period certain powers of the Minister of Supply for purposes similar to those for which Defence Regulations may be applied and otherwise for amending those powers; and for purposes connected with the matters aforesaid.

[10th December 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If it appears to His Majesty to be necessary or expedient that any Defence Regulation to which this section applies should have effect for the purpose of so maintaining controlling and regulating supplies and services as—

- (a) to secure a sufficiency of those essential to the wellbeing of the community or their equitable distribution or their availability at fair prices; or

Power to extend purposes of certain Defence Regulations.

- (b) to facilitate the demobilisation and resettlement of persons and to secure the orderly disposal of surplus material ; or
- (c) to facilitate the readjustment of industry and commerce to the requirements of the community in time of peace ; or
- (d) to assist the relief of suffering and the restoration and distribution of essential supplies and services in any part of His Majesty's dominions or in foreign countries that are in grave distress as the result of war ;

he may by Order in Council direct that the Regulation shall have effect by virtue of this Act whether or not it is for the time being necessary or expedient for the purposes specified in subsection (1) of section one of the Emergency Powers (Defence) Act, 1939.

2 & 3 Geo. 6.
c. 62.

(2) An Order in Council made under this section with respect to any Defence Regulation shall provide for the making in the Regulation of such adaptations, if any, as appear to His Majesty to be necessary or expedient for rendering it applicable for the purposes aforesaid.

(3) Where an Order in Council is made under this section with respect to any Defence Regulation, all orders and other instruments made under the Regulation and in force at the date when the Order in Council comes into operation shall continue in force and shall, save as is otherwise expressly provided in the Order in Council, have effect as if they had been made under the Regulation as extended by the Order in Council and as if any references in those orders and instruments to any of the purposes specified in subsection (1) of section one of the Emergency Powers (Defence) Act, 1939, included references to the purposes specified in subsection (1) of this section.

(4) This section applies to any Defence Regulation contained in Part III or Part IV of the Defence (General) Regulations, 1939, at the date of the passing of this Act and to any Defence Regulation specified in the second column of the First Schedule to this Act, and references in any Order in Council made under this section to any such Regulation shall be construed as references to that Regulation as in force at the date on which the Order comes into operation.

Power to
make Defence
Regulations
for controlling
prices.

2.—(1) The powers conferred on His Majesty by the principal Acts to make such Defence Regulations as appear to him to be necessary or expedient for the purposes specified in subsection (1) of section one of the Emergency Powers (Defence) Act, 1939, shall include power by Order in Council to make such Defence Regulations as appear to him to be necessary or expedient for controlling the prices to be charged for goods of any description

or the charges to be made for services of any description, whether or not such Regulations are necessary or expedient for the purposes specified in the said subsection (1).

(2) Without prejudice to the generality of the power conferred by the last foregoing subsection, any Defence Regulation made in pursuance thereof may amend the Goods and Services (Price Control) Acts, 1939 to 1943.

(3) Any Defence Regulation expressed to be made in pursuance of the said power shall have effect by virtue of this Act.

3.—(1) His Majesty, by Order in Council made under this Act, may revoke in whole or in part any Defence Regulation which has effect by virtue of this Act or may vary any such Regulation in such manner as appears to him—

Revocation and variation of Defence Regulations having effect under this Act.

(a) in the case of a Regulation to which section one of this Act applies, to be necessary or expedient for any of the purposes specified in subsection (1) of that section or, while the principal Acts continue in force, for any of the purposes specified in subsection (1) of section one of the Emergency Powers (Defence) Act, 1939, or

(b) in the case of a Regulation made in pursuance of the power conferred by the last foregoing section, to be necessary or expedient for the additional purpose specified in subsection (1) of that section.

(2) Subsection (3) of section eight of the Emergency Powers (Defence) Act, 1939 (which relates to the power to revoke or vary Orders in Council made under that Act) shall not apply to any Defence Regulation which has effect by virtue of this Act.

4.—(1) Every Order in Council made under the principal Acts (or under those Acts as extended by section two of this Act) which contains Defence Regulations, every order or other instrument made under powers conferred by Defence Regulations which is determined in accordance with regulations made under section three of the Rules Publication Act, 1893, to be a statutory rule within the meaning of the said section and to be of the nature of a public Act or which is or is deemed to be a statutory rule to which the Rules Publication Act (Northern Ireland), 1925, applies (being an Order in Council order or instrument made after the passing of this Act), and every Order in Council made under this Act, shall be laid before Parliament as soon as may be after it is made ; and if either House of Parliament, within the period of forty days beginning with the day on which any such Order in Council, order or instrument is laid before it, resolves that it be annulled, it shall cease to have effect, but without prejudice to anything previously done thereunder or to the making of any new Order in Council, order or other instrument.

Parliamentary control over Defence Regulations and orders and other instruments made thereunder.
56 & 57 Vict.
c. 66.

In reckoning any period for the purposes of this subsection no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(2) Section one of the Rules Publication Act, 1893, shall not apply to any such Order in Council, order or other instrument as aforesaid.

(3) Subsections (1) and (2) of section eight of the Emergency Powers (Defence) Act, 1939, are hereby repealed.

Application of
principal Acts
and effect of
their expiry,
and adaptation
of other
enactments.

5.—(1) Save as is otherwise expressly provided in the last two foregoing sections of this Act, nothing in this Act shall be construed as restricting the operation of the principal Acts while those Acts remain in force, or as affecting their application to Defence Regulations having effect by virtue of this Act, and any reference in those Acts to the purposes for which Defence Regulations may be made shall, in their application to Defence Regulations having effect by virtue of this Act, be construed as including a reference to the purposes specified in section one or, as the case may be, section two of this Act.

(2) If the principal Acts expire while this Act is in force—

(a) the provisions of those Acts, except the provisions specified in the Second Schedule to this Act, shall, notwithstanding their expiry for all other purposes, continue to apply (so far as applicable) while this Act is in force to any Defence Regulation having effect by virtue of this Act, any order or other instrument made under any such Regulation and any scheme of control contained in or authorised by any such Regulation ; and

(b) any such Regulation and any order or other instrument made under any such Regulation shall have effect, as from the date of the expiry of the said Acts, as if references therein to any of the purposes specified in subsection (1) of section one of the Emergency Powers (Defence) Act, 1939, were omitted therefrom.

(3) Any enactment other than the principal Acts referring to Defence Regulations or to powers conferred under the Emergency Powers (Defence) Act, 1939, shall be construed as including a reference to Defence Regulations having effect by virtue of this Act or, as the case may be, to powers conferred thereby.

(4) Section four of the Emergency Powers (Defence) Act, 1939 (which provides for the application of that Act to colonies and other territories) shall have effect as if the reference to the provisions of that Act included a reference to the foregoing provisions of this Act, and as if the reference to the authority empowered to make Defence Regulations included a reference to the authority

empowered to exercise the powers of His Majesty in Council under the foregoing provisions of this Act ; and the said section shall, if the principal Acts expire while this Act is in force, continue in force, notwithstanding such expiry, so far as it provides for the extension of the foregoing provisions of this Act to any country or territory mentioned in the said section.

(5) The provisions of Parts II, V and VI of the Requisitioned Land and War Works Act, 1945 (which confer temporary powers to acquire and retain possession of land used for war purposes and to maintain, use and remove war works) shall, subject as hereinafter provided, have effect as if the expression " war period " included any period after the expiry of the Emergency Powers (Defence) Act, 1939, during which this Act is in force and as if the expression " war purposes " included the purposes specified in subsection (1) of section one of this Act, and any other provisions of the said Requisitioned Land and War Works Act, 1945 (except section forty-five thereof), shall, so far as they relate to the provisions aforesaid, have the like effect :

Provided that no powers shall be exercisable by virtue of this subsection unless the appropriate Minister has certified—

- (a) in a case where the powers arise in consequence of the doing of work on land, that the work was done after the date of the expiry of the Emergency Powers (Defence) Act, 1939, for the purposes specified in subsection (1) of section one of this Act, or that works constructed in the course of the work have been used after the said date for the purposes aforesaid ; or
- (b) in a case where the powers arise in consequence of the possession or use of land or damage caused by the use of land, that the land has been used after the said date for the purposes aforesaid ;

and has served a copy of the certificate, either by delivery or by prepaid registered letter on any person to whom compensation under paragraph (a) of subsection (1) of section two or subsection (2) of section three of the Compensation (Defence) Act, 1939, is in course of payment in respect of the land to which the certificate relates.

In this subsection the expressions " Minister," " works " and " the doing of work on land " have the same meanings as in the Requisitioned Land and War Works Act, 1945, and the expression " the appropriate Minister " means the Minister by whom or by arrangement with whom or on whose authority or direction the work was done or the land or works were used for the purposes aforesaid, and section fifty-six of the Requisitioned Land and War Works Act, 1945 (which relates to the

exercise of powers by the Board of Trade), and subsection (2) of section fifty-eight of that Act (which relates to the proof of certificates) shall apply for the purposes of this subsection as they apply for the purposes of that Act.

Application of
powers of
Minister of
Supply.
2 & 3 Geo. 6.
c. 38.

6.—(1) For the purposes of the Ministry of Supply Act, 1939 (which confers powers on the Minister to acquire, produce or dispose of articles required for the public service and to exercise certain other powers in relation to such articles) the expression “articles required for the public service” shall include any supplies which the Minister of Supply is satisfied that it is necessary or expedient to maintain, control or regulate for any of the purposes specified in subsection (1) of section one of this Act, and the expression “works required for the public service” shall be construed accordingly.

(2) Notwithstanding anything in proviso (i) to subsection (1) of section two of the Ministry of Supply Act, 1939, the powers of the Minister of Supply under that subsection may, so long as this Act continues in force, be exercised in relation to the supply to any other government department of any articles required by that department for the purpose of the discharge of its functions, whether or not the powers of that department in relation to the supply of those articles are for the time being transferred to or made exercisable by the Minister under section three of the Ministry of Supply Act, 1939.

(3) Notwithstanding anything in proviso (ii) to the said subsection (1) of section two, the powers of the said Minister under that subsection of manufacturing or otherwise producing articles may continue to be exercised so long as this Act continues in force in respect of any articles whatsoever required for the public service within the meaning of the Ministry of Supply Act, 1939, as amended by this Act.

(4) Notwithstanding anything in section fourteen of the Ministry of Supply Act, 1939, the provisions of sections seven to thirteen thereof shall continue in force so long as this Act continues in force.

Expenses.

7. There shall be defrayed out of moneys provided by Parliament any expenses incurred by any Minister of the Crown in consequence of the passing of this Act, and any increase attributable to the passing of this Act in any sums authorised or required by any other enactment to be paid out of moneys provided by Parliament.

Duration.

8.—(1) Subject as hereinafter provided this Act shall continue in force for the period of five years after the passing thereof and shall then expire :

Provided that, if at any time while this Act is in force, an Address is presented to His Majesty by each House of Parliament

praying that this Act should be continued in force for a further period of one year from the time at which it would otherwise expire, His Majesty may by Order in Council direct that this Act shall continue in force for that further period.

(2) Subsection (2) of section thirty-eight of the Interpretation 52 & 53 Vict. Act, 1889, shall apply upon the expiry of this Act as if this Act c. 63. had then been repealed.

9. Nothing in this Act shall restrict the powers of the Parliament of Northern Ireland to make laws with respect to any matter with respect to which that Parliament has power to make laws, and any laws made by that Parliament with respect to any such matters shall have effect notwithstanding anything in any Defence Regulation having effect by virtue of this Act and applicable to Northern Ireland, or in any order or other instrument made under such a Regulation. Saving for legislative powers of Parliament of Northern Ireland.

10.—(1) This Act may be cited as the Supplies and Services (Transitional Powers) Act, 1945. Short title and interpretation.

(2) In this Act the expression "Defence Regulation" means a Regulation made under the Emergency Powers (Defence) Act, 1939, or under that Act as extended by any subsequent enactment (including this Act), and the expression "the principal Acts" means the Emergency Powers (Defence) Acts, 1939 to 1945.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

ADDITIONAL DEFENCE REGULATIONS TO WHICH SECTION ONE
OF THIS ACT APPLIES.

<i>Title.</i>	<i>Extent of application.</i>
The Defence (Bodies Corporate and Trade Unions) Regulations, 1940.	All Regulations in force at the date of the passing of this Act.
The Defence (Encouragement of Exports) Regulations, 1940.	All Regulations in force at the said date.
The Defence (Finance) Regulations, 1939.	All Regulations in force at the said date.
The Defence (Local Government) (Scotland) Regulations, 1939.	All Regulations in force at the said date.
The Defence (Recovery of Fines) Regulations, 1942.	All Regulations in force at the said date.
The Defence (Recovery of Fines) (Scotland) Regulations, 1942.	All Regulations in force at the said date.
The Defence (General) Regulations, 1939.	Such of the Regulations contained in Part V at the said date as apply to any other Regulations having effect by virtue of this Act.

Section 5.

SECOND SCHEDULE.

PROVISIONS OF EMERGENCY POWERS (DEFENCE) ACTS, 1939 and 1940,
EXCEPTED FROM CONTINUANCE UNDER THIS ACT.

<i>Act.</i>	<i>Extent of exception.</i>
Emergency Powers (Defence) Act, 1939.	Paragraph (a) of subsection (2) of section one (which relates to the detention of persons in the interests of the public safety or the defence of the realm); and paragraph (aa) of that subsection so far as it confers power to provide for the trial of offenders by courts established under Defence Regulations. Section six (which relates to the hearing of proceedings in camera).
The Emergency Powers (Defence) (No. 2) Act, 1940.	The whole Act (which relates to the power to provide for the trial of offences by special courts in certain areas).

3 & 4 Geo. 6.
c. 45.

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